**IN THE BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES**

**KING'S BENCH DIVISION**

**CIRCUIT COMMERCIAL COURT (KBD)**

Claim No. CC-2025-LON-000389

**B E T W E E N :**

**SUTHERLAND LOGISTICS LIMITED**

*Claimant*

- and -

**VANTAGE FREIGHT SOLUTIONS LIMITED**

*Defendant*

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# DEFENCE

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1. References in this Defence to paragraph numbers are to the paragraphs of the Particulars of Claim unless otherwise stated. Save as expressly admitted, the Defendant denies each and every allegation in the Particulars of Claim as if the same were set out and traversed seriatim.

2. Paragraphs 1 and 2 are admitted.

3. Paragraph 3 is admitted save that it is denied that the Agreement bore the meaning or effect alleged. The Defendant will refer to the Agreement at trial for its full terms and effect.

4. As to paragraph 4, the terms pleaded at sub-paragraphs (a) to (f) are admitted. It is denied that those terms had the effect for which the Claimant contends. In particular, the Defendant avers that, on the proper construction of the Agreement and/or by reason of the parties' subsequent conduct, the Agreement was terminable on 30 days' notice.

5. Paragraphs 5 and 6 are not admitted. The Claimant is put to proof that it performed its obligations and met the service levels in Schedule 2. The Defendant's case is that from in or about October 2024 the Claimant repeatedly failed to meet the on-time despatch and accuracy service levels, particulars of which will be provided following disclosure.

6. As to paragraph 7, it is admitted that the invoices identified were issued and that they have not been paid. It is denied that the sums are due and payable. The Defendant was entitled to withhold payment by reason of its set-off and counterclaim for the service failures referred to above.

7. As to paragraphs 8 to 10, it is admitted that the Defendant gave notice of termination on 9 May 2025. It is denied that the termination was wrongful or a repudiatory breach. The Defendant was entitled to terminate by reason of (i) the Claimant's material breaches of the service levels, alternatively (ii) the variation pleaded at paragraph 4 above. It is denied that the Claimant validly accepted any repudiation.

8. As to paragraphs 11 to 16, the loss and damage claimed is denied. If, which is denied, the Defendant is liable, the Claimant's loss is significantly overstated and the Claimant has failed to give proper credit for mitigation. The Claimant is put to strict proof of each head of loss and of the steps taken in mitigation.

9. As to interest, no sum being due, no interest is payable. If any sum is found due, the rate and period of interest are matters for the Court.

10. Save as expressly admitted, the Defendant denies that the Claimant is entitled to the relief claimed or to any relief.

## Statement of Truth

The Defendant believes that the facts stated in this Defence are true. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Signed: …… Brian Tovey, Director, for and on behalf of the Defendant

Dated: 15 December 2025

Marlowe Greaves LLP, 31 King Street, Leeds LS1 2HL - Solicitors for the Defendant (Ref: MG/VFS/0042)